

M/s Babu Jagadish Singh Cold Storage Pvt. Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Single Judge · 20 February 2020 · Writ-C No. 24039 of 2009 · **Listed July 2020; costs for delayed counter; merits open**

HEADNOTE

Interlocutory listing of a 2009 electricity writ. After eleven years without a counter affidavit, three weeks were granted on costs of Rs 5,000 recoverable from the Executive Engineer. The counter was to disclose the status of the final report and why the proceedings might not be dropped under the U.P. Electricity Supply Code, 2005. No merits decided.

FACTUAL SUMMARY

M/s Babu Jagadish Singh Cold Storage Pvt. Ltd. filed Writ-C No. 24039 of 2009 against the State of U.P. and electricity officials. After a 2009 illness-slip adjournment the petition remained without a counter. In January 2020 the Court noted a change of electricity counsel and directed service. On 28 January 2020 three weeks were allowed for a counter on costs of Rs 5,000, recoverable from the Executive Engineer, to address the final report and why proceedings might not be dropped under the 2005 Supply Code. The cause was then listed for July 2020.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

listing and delayed counter affidavit

HOLDING

The writ was not decided on merits. After noting that the electricity department had not filed a counter affidavit for eleven years, the Court granted three weeks and no more, on payment of Rs 5,000 recoverable from the Executive Engineer, and directed that the counter disclose the status of the final report and why the proceedings may not be dropped in terms of the U.P. Electricity Supply Code, 2005. On joint request the matter was listed for July 2020. ¶ 3-4

PRINCIPLE TAGS

procedural-listing-no-construction Interlocutory listing of a 2009 electricity writ. After eleven years without a counter affidavit, three weeks were granted on costs of Rs 5,000 recoverable from the Executive Engineer. The counter was to disclose the status of the final report and why the proceedings might not be dropped under the U.P.. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY PROCEEDINGS SHOULD BE DROPPED UNDER THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court only directed the licensee to address this in the counter affidavit. ¶ 3